

25SMCV00156 25SMCV00156

County: los-angeles

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

2, 2026

CASE NUMBER

25SMCV00156

MOTIONS

Motions

to Compel Further Requests for Production of Documents, Form Interrogatories,
and Special Interrogatories

MOVING PARTY

Defendant

Kapish Haldia

OPPOSING PARTY

Plaintiff

Tradewinds Mechanical Parent, LLC

MOTION

This case arises from allegations that Plaintiff's former Mergers & Acquisitions Advisor mismanaged and embezzled from Plaintiff's investment and operating capital.

The operative Second Amended Complaint ("SAC") filed by Plaintiff Tradewinds Mechanical Parent, LLC ("Plaintiff" or "Tradewinds") against Defendant and Cross-Complainant Kapish Haldia ("Defendant") alleges four causes of action for (1) breach of fiduciary duty; (2) constructive fraud; (3) violation of California Penal Code, § 496; and (4) accounting.

Defendant has cross-complained against Cross-Defendants Matthew Shaw; Morgan Strain; Steven Brayet; Climate Specialists Holdings, Inc.; and Calico Group LLC ("Cross-Defendants") alleging five causes of action for (1) conversion; (2) breach of fiduciary duty; (3) fraudulent concealment; (4) constructive trust/unjust enrichment; and (5) declaratory relief. Defendant alleges that Cross-Defendants fraudulently and maliciously ousted Defendant from Tradewinds Mechanical Parent, LLC, the parties' joint business venture.

Defendant now moves to compel Plaintiff to provide further responses to Requests for Production of Documents, sets one and two ("RPD"); Form Interrogatories, set one ("FROG"); and Special Interrogatories, set one ("SROG"). Plaintiff opposes the motions and Defendant replies.

PROCEDURAL REQUIREMENTS

Timeliness of Motions

A notice of motion to compel further responses must be given within 45 days of the service of the responses, or any supplemental responses, or on or before any specific later date to which the

parties have agreed in writing. (Code Civ. Proc., §§ 2030.310, subd. (c).)

Failure to file such a motion within this time period constitutes a waiver of any right to compel further responses to interrogatories or requests for production of documents. (Ibid.)

Here, Defendant electronically

served Plaintiff with the FROG, SROG, and RPD set 1 on September 17, 2025. (Gerbe Decl. iso FROG at ¶ 5 and Ex. A; Gerbe

Decl. iso RPD and SROG at ¶ 4 and Ex. A.)

Plaintiff responded on November 3, 2025.

Defendant served the RPD set 2 on October 14, 2025 and Plaintiff

responded on November 14, 2025. (Gerbe

Decl. iso RPD at ¶¶ 5, 8-9 and Ex. B, C, D.)

Following an informal discovery conference (“IDC”), Plaintiff

supplemented its responses on March 24, 2026, and again on April 21, 2026. (Gerbe Decl. iso FROG at ¶¶ 14, 22 and Ex. D, F; Gerbe Decl. iso RPD at ¶¶ 17, 24 and Ex. G, I; Gerbe Decl. iso SROG at ¶¶ 15-16, 22-23 and Ex. D, F.)

On May 20, 2026, Defendant filed the instant motions. Therefore, the motions are timely.

Separate Statement

California

Rules of Court, rule 3.1345 requires that any motion involving the content of discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for why an order compelling further responses is warranted.

Defendant

has provided a separate statement with respect to the FROG, SROG, and RPD in compliance with the Rules of Court.

Meet & Confer

The Gerbe Declaration indicates the parties met and conferred at length. Therefore, Defendant has satisfied the meet and confer and IDC obligations.

LEGAL

STANDARD - DISCOVERY – GENERAL PRINCIPLES

“The purpose of the discovery rules

is to enhance the truth-seeking function of the litigation process and

eliminate trial strategies that focus on gamesmanship and surprise. In other words, the discovery process is

designed to make a trial less a game of blindman's bluff and more a fair

contest with the basic issues and facts disclosed to the fullest practicable

extent.” (Juarez v. Boy Scouts of Am., Inc. (2000) 81 Cal.App.4th 377, 389

[cleaned up].)

Where a party objects, or responds

inadequately, to discovery requests, a motion lies to compel further responses,

and that party has the burden to justify the objections or inadequate

responses. (Fairmont Ins. Co. v. Superior

Court (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a)

[motion to compel further responses lies “[o]n receipt of a response to a

demand for inspection”).) “A trial

court's determination of a motion to compel discovery is reviewed for abuse of

discretion. However, when the facts

asserted in support of and in opposition to the motion are in conflict, the

trial court's factual findings will be upheld if they are supported by

substantial evidence.” (Costco Wholesale

Corp. v. Superior Court (2009) 47 Cal.4th 725, 733 [cleaned up].)

ANALYSIS

1.

FROGs

Defendant seeks further responses to FROG Nos. 8.7, 9.2, and 17.1,

which seek (1) the amount of Plaintiff's claimed loss and how it was

calculated; (2) the documents supporting that claimed loss; and (3) the factual

and documentary bases for Plaintiff's denials of Defendant's Requests for

Admission (“RFA”).

a.

FROG No. 8.7

Defendant contends Plaintiff's responses are inadequate because the

Complaint alleges embezzled funds of at least \$500,000 and substantial damages, which is reiterated in its response to FROG No. 8.7, yet the itemized transactions Plaintiff has provided total only \$215,131.

In opposition, Defendant argues that for FROG No. 8.7, it has identified all categories of damages currently known, but that its investigation remains ongoing, and it reserves the right to claim additional damages, as supported by a final expert analysis.

In reply, Plaintiff argues that Defendant has still not bridged the gap between the claimed \$500,000 and the \$215,131 it has itemized.

Ultimately, Defendant cannot provide documents or information it does not have. Defendant has indicated it is only able to itemize \$215,131 of embezzlement damages at present. Should Defendant later produce an expert report itemizing greater embezzlement damages based on documents and/or information it currently has but failed produce, Plaintiff may pursue appropriate remedies at that time.

b.

FROG Nos. 9.2 and 17.1

As for FROG Nos. 9.2 and 17.1, which ask Plaintiff to identify each document that supports the claimed damages and Plaintiff's RFA denials, Defendant argues Plaintiff's responses are deficient because Plaintiff simply directs Defendant generally to its entire 2,000-page document production as the documents purportedly supporting its damages and the factual/documentary bases for its denials of Defendant's RFA.

In opposition, Plaintiff argues that Defendant is not entitled to a document-by-document evidentiary roadmap identifying the specific records Plaintiff intends to rely upon at trial.

While the Court agrees that Plaintiff is not required to yet identify which specific documents Plaintiff intends to rely on at trial, Plaintiff is required to identify, by bates number, each specific document that is responsive, which Plaintiff has failed to do.

Therefore, the Court grants Defendant's motion to compel further responses to FROG Nos. 9.2 and 17.1.

2.

RPD

Defendant argues Plaintiff's RPD responses are deficient for the following reasons:

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Responses to RPD Nos. 1-10, 12-14, 16-17, and 19-22 identify sweeping and overlapping bates ranges.

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All responses indicate "discovery is ongoing" and Defendant "will produce" responsive documents.

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Responses to RPD Nos. 13-14 do not confirm that all responsive financial records have been produced.

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Responses to RPD Nos. 21-22 do not provide code-compliant statements of inability to comply, because it indicates both that no such responsive documents are in its possession, custody, or control and that responsive documents may still exist in archived email accounts, without identifying the relevant custodians.

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Response to RFP No. 23 is not code-compliant (indicating compliance, inability to comply, and/or an objection).

Taking Defendant's second argument first, the Discovery Act requires that a party responding to a demand for production of documents must provide "a statement that the party will comply with the particular demand [...]" (Code Civ. Proc., § 2031.210, subd. (a)(1).) Thus, to the extent Plaintiff takes issue with Defendant's language that it will produce documents, such arguments are unfounded.

Notwithstanding, regarding Defendant's first argument, "Any documents or category of documents produced in response to a demand for inspection,

copying, testing, or sampling shall be identified with the specific request number to which the documents respond.”
(Code Civ. Proc., § 2031.280, subd. (a).)

Thus, Defendant’s generic reference to the entire document production in response to each RPD is insufficient under the Code.

With regard to RPD Nos. 13-14 and 21-22, the Court agrees that Plaintiff’s responses are not code-compliant, and Plaintiff does not specifically address these RPD in opposition.

Regarding RPD No. 23, it is clear to the Court that Plaintiff is standing on its objections. Because Defendant’s only objection is that the response is not code-compliant, the Court denies Defendant’s request to compel a further response to RPD No. 23.

As such, the Court grants Plaintiff’s motion to compel further responses to RPD No. 1-10, 12-14, 16-17, and 19-22 as discussed above, but not RPD No. 23.

3.
SROG

Plaintiff seeks to compel further responses to SROG Nos. 6, 8, 10, 12, 14, 16, 18, 20, 22, and 24 as follows:

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SROG Nos. 6, 10, 14, 18, and 22 repeat the same narrative across separate and distinct legal theories.

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Tradewinds characterizes various expenditures as “unauthorized” without identifying the authorization framework.

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The response to SROG No. 22 is internally inconsistent and does not reconcile the amounts sought.

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SROG Nos. 8, 12, 16, 20, and 24 improperly

reference large Bates ranges.

a.

SROG Nos. 6, 10, 14, 18, and 22

First, Defendant argues Plaintiff's responses to SROG Nos. 6, 10, 14, 18, and 22 improperly list categorical totals instead of identifying specific charges.

Second, Plaintiff repeats by incorporation the same factual narrative of its breach of fiduciary duty cause of action (SROG No. 6) to its causes of action for constructive fraud (SROG No. 10); Penal Code section 496 (SROG No. 14); accounting (SROG No. 18); and embezzlement (SROG No. 22).

Third, Defendant objects again to Plaintiff's reference to an ongoing investigation.

Taking Defendant's third argument first, as discussed above, Plaintiff is only obligated to respond based on information it has available to it right now.

Further, upon review of Plaintiff's narrative, the Court finds that it is a comprehensive overview of the totality of the improper conduct Defendant is alleged to have done, which underlies and supports all of Plaintiff's claims. As such, the Court does not find the repetition of a comprehensive factual narrative to be deficient.

However, the Court agrees with Defendant's first point, that Plaintiff's vague subtotals, which are neither itemized nor specifically identify the documents upon which those subtotals are based are deficient.

As such, the Court grants Defendant's motion to compel further responses to SROG Nos. 6, 10, 14, 18, 22 to identify the specific facts underlying each of the subtotals.

b.

"Unauthorized"

Defendant next objects to Plaintiff's responses, to the extent they refer generally to "unauthorized" charges without explaining the authorization

framework.

In addition to itemizing specific charges Plaintiff contends were unauthorized, Plaintiff's responses indicate as follows:

Each of the above-listed charges were unauthorized. All M&A efforts were managed remotely. Outside of traveling with Steven Brayet or Matt Shaw or attending internal meetings, Defendant was not authorized to travel by himself. Defendant was not authorized, or even expected, to entertain or wine and dine potential deal partners. The extent of Defendant's authorized spending was limited to reasonable expenses related to travel to Plaintiff's place of business (i.e., reasonable flights, meals, hotels). Other expenses, like for example, gym memberships, clothing, club memberships, and other merchandise, were not authorized.

The Court finds this sufficient to satisfy Plaintiff's discovery obligations.

c.

SROG No. 22

The Court does not find the response to SROG No. 22 to be internally inconsistent merely because it itemizes only \$215,131 in embezzlement damages instead of \$500,000. Rather, as discussed above, Plaintiff has indicated at this point in time, it is only able to identify \$215,131 in embezzlement damages.

d.

SROG Nos. 8, 12, 16, 20, and 24

Finally, Defendant objects to Plaintiff's responses to SROG Nos. 8, 12, 16, 20, and 24 on the grounds that they reference large ranges of Bates numbers instead of the specific documents that are responsive to each of these requests.

As discussed above, the Court agrees with Defendant that this is improper.

4.

Sanctions

A trial court may sanction a party for engaging in the misuse of discovery, which includes: failure to respond or submit to an authorized method of discovery; making an evasive response to discovery; making, without substantial justification, an unmeritorious objection to discovery; and making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery. (Code Civ. Proc., § 2023.010.)

In addition, Code of Civil Procedure section 2030.300, subdivision (d) provides: "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Defendant seeks monetary sanctions in the amount of \$3,550 in connection with the FROG and SROG, representing approximately 8 hours of associate time at an hourly rate of \$380 and about 0.75 hours of partner time at a rate of \$600 per hour; and \$4,310 in connection with the RPD; and \$3,550 in connection with the SROG, representing approximately 10 hours of associate time at an hourly rate of \$380 and about 0.75 hours of partner time at a rate of \$600 per hour, plus the \$60 filing fee for each motion.

The Court agrees that Plaintiff's counsel misused the discovery process by making evasive responses to discovery and unsuccessfully opposing the motions on the grounds that Plaintiff is not obligated to identify the specific documents in the production that respond to each request, without substantial justification.

However, the Court finds the amounts sought excessive, and awards a total of \$2460.00, representing 6 hours of attorney time to prepare the motions at \$380 per hour, plus the \$180 in filing fees.

CONCLUSION AND ORDER

Therefore, the Court rules as follows:

FROG

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Defendant's motion to compel further responses to FROG No. 8.7 is denied.

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Defendant's motion to compel further responses to FROG Nos. 9.2 and 17.1 is granted.

Plaintiff shall provide further responses to identify the specific documents that are responsive to each request.

RPD

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Defendant's motion to compel further responses to RPD Nos. 1-10, 12-14, 16-17, and 19-22 is granted. Plaintiff shall provide further responses identifying by bates numbers, which specific documents in the production correspond to each of the RPD. Further, with respect to RPD Nos. 13-14 and 21-22, Plaintiff's existing responses are not code-compliant. Plaintiff shall provide further responses, indicating whether Plaintiff is complying in full, objecting, or unable to comply because the documents are not in its possession, custody, or control.

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Defendant's motion to compel a further response to RPD No. 23 is denied, as Plaintiff's existing response is code-compliant.

SROG

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Defendant's motion to compel further responses to SROG Nos 6, 10, 14, 18, 22 is granted.

Plaintiff shall provide further responses, identifying the specific facts underlying each of the subtotals.

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Defendant's motion to compel further responses to SROG Nos. 8, 12, 16, 20, and 24 is granted.

Plaintiff shall provide further responses, identifying the specific documents that are responsive to each of these requests.

Plaintiff shall provide further, code-compliant responses consistent with this ruling within twenty (20) days of notice of the Court's orders.

Further, Plaintiff's counsel of record, Kevin J. Cole of KJC Law Group, A.P.C., shall pay monetary sanctions to Defendant, by and through Defendant's counsel, in the amount of \$2460.00 within twenty (20) days of notice of the Court's orders.

Defendant shall provide notice of the Court's orders and file the notice with a proof of service forthwith.

DATED: July 2, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court